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1891
FOREIGN DEPARTMENT.

SECRET E.

Pros. August 1891, Nos. 178-183.

New Commercial Treaty with the Sultan of Muscat.

NAIDLF00447079

Amul 4

REFERENCES TO FORMER CASES.

Branch, date, and Nos.	Brief title of file.
Deposit E., Aug. 1891, No. 25.	Reminder.
Secret E., March " Nos. 127-132.	Proposed new Commercial Treaty with Muscat.
" Sept. 1890 " 254-266,	New Commercial Treaty with the Sultan of Muscat.
and countermarks.	Treaty of friendship and commerce between Great Britain and Zanzibar.
Extl. A. Aug. 1887 " 97-99.	

REFERENCES TO LATER CASES.

Branch, date, and Nos.	Brief title of file.
<i>See E. May/92-127</i>	<i>Ratification of the</i>
<i>137</i>	<i>Treaty.</i>
<i>S. E., Oct. 05, 49-54</i>	

(To be continued on back, if necessary.)

KEEP-WITHS PRINTED.

Notes on the case.

KEEP-WITHS NOT PRINTED.

Original of despatch.

GOVT. OF
INDIA.

1891

{ FOREIGN
DEPT.

SECRET E.

AUGUST.

Nos. 178-183.

BRIEF SUBJECT.

New Commercial Treaty with the Sultan of Muscat.

LIST OF PAPERS.

No. 178.—From Poltl. Resident in the Persian Gulf, No. 60 of 31st March 1891—Forwards, for ratification, the new Commercial Treaty concluded with the Sultan of Muscat.

No. 179.—To Poltl. Resident in the Persian Gulf, No. 1088-E. of 25th May 1891—Points out certain errors and omissions in the Treaty, and requests that copies of the Treaty (returned) may be corrected accordingly.

No. 180.—Enclosure.

No. 181.—From Poltl. Resident in the Persian Gulf, No. 123 of 20th July 1891—Returns, duly corrected, the copies of the new Commercial Treaty with the Sultan of Muscat.

No. 182.—Enclosure.

No. 183.—To Secy. of State for India, No. 143 (Secret-Extl.) of 18th Aug. 1891—Forwards, for ratification, the new Commercial Treaty concluded with the Sultan of Muscat.

Ext.—W. G. R.

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K. W.
SECRET E., AUGUST 1891.
Nos. 178-183.

New Commercial Treaty with the Sultan of Muscat.

[Pros. No.
178.]

FROM POLITICAL RESIDENT IN THE PERSIAN GULF, No. 60, DATED THE 31ST MARCH 1891.

With reference to the letter cited, forwards for ratification the new Commercial Treaty concluded with the Sultan of Muscat.

The amendments which Colonel Ross was requested at the suggestion of the Secretary of State to make in the Treaty have been carried out, and the Treaty is now sent by Colonel Ross for ratification.

The Treaty will, it is presumed, be ratified by Her Majesty the Queen, and may now be sent to the Secretary of State for the purpose.

F. A. DEBEAUFORT—16th April 1891.

R. W. S.—16th April 1891.

Mr. Ney Elias.

DEPUTY SECRETARY.

The English (both copies) has been compared in the Branch, and the alterations and additions required by the Secretary of State have been found to be in order. The Arabic might now be compared in the same way in the Persian Office, when the Treaty can go home for ratification.

17th April 1891.

N. E.

Persian Office.

W. J. C.

21st April 1891.

I have compared the Arabic copies and find the following errors and omissions, which require correction and insertion in copy marked A :—

(1) In the preamble, the words ابن السيد تركي (Ibn-i-Saiyid Turki) are left out after السيد فيصل (Saiyid Feysal).

(2) (The sign of dual No.) is omitted in the last line from the word عقد which ought to be = عقدا .

(3) In the 2nd line of the 1st Article ر (conjunctive article) is omitted after بهذا .

(4) The words ارضالب have been unnecessarily repeated, and require deletion, in the last but one line of the 2nd article.

(5) The word ليصير requires insertion after رعاية in the 4th line of the 3rd article.

(6) In the last line of the 9th article كن requires to be altered, making it = ليكن .

(7) The word تعيد in the 2nd line of the 11th article requires to be changed to = تعود .

(8) In article 11th the last paragraph, representing the translation of "Likewise should a vessel of His Highness the Sultan, &c., &c.," to the end, has been totally omitted.

24th April 1891.

R. H.

Please see also our letter of instructions to the Political Resident, Persian Gulf, No. 293-E., dated 11th February 1891. The Political Resident was told to embody in the fresh

Treaty Articles I and XXIII as drafted in this Office. This has been done, but so far as Article

I is concerned, this has been substituted for the Article I originally drafted by Colonel Ross. It is not clear why this has been done. I submit the matter for orders.

F. A. DEBEAUFORT—25th April 1891.

R. W. S.—25th April 1891.

Mr. Ney Elias.

DEPUTY SECRETARY.

As to Article I, we may leave it as it stands. Colonel Ross has carried out our instructions* literally. The present Article I replaces one that was merely a formality, and was not necessary.

* Secret E., March 1891, Nos. 127-132.

Article XXIII is now correct.

As regards the Arabic, although the errors, &c., are of no great importance, we must, I think, after what was noted by the Legislative Department on the 18th August 1890,† send back the Treaty for alteration by the Sultan, who should, at the same time, be asked to initial his amendments.

28th April 1891.

N. E.

SECRETARY.

The only importance attaching to the errors in the Arabic version of one copy of the Treaty lies in the fact that there are differences in what purport to be duplicates. If a question of interpretation arose we would go by the English version, and moreover the omitted part of

Article XXII.

Article XI imposes an obligation on us, not on the Sultan.

Still if corrections are to be made we should return the Treaty for the purpose of having such corrections attested by the Sultan.

If the Legislative Department do not consider this necessary I would send the Treaty as it is for ratification.

30th April 1891.

W. J. C.

I am not sure that with an independent State like Muscat we can adhere to our Indian principle that only the English version of the Treaty is recognised, the vernacular being a mere translation.

We had better let the Legislative Department see.

1st May 1891.

H. M. D.

To Legislative Department unofficially.

REGISTRAR.

Submitted.

S. A. C.—4th May 1891.

A. B. W.—4th May 1891.

Deputy Secretary.

SECRETARY.

The errors noted seem unimportant, but the omission noted in Article II might provoke comment hereafter. The safest course would be to return the Treaty for correction as suggested.

5th May 1891.

L. P.

7th May 1891.

S. H. J.

Hon'ble Member.

7th May 1891.

A. E. M.

DEPUTY SECRETARY.

To Foreign Department.

A. B. W.—7th May 1891.

7th May 1891.

L. P.

Secretary.

7th May 1891.

S. H. J.

To Foreign Department unofficially.

MR. NEY ELIAS.

The Legislative Department thinks it would be best to return the Treaty for correction. But that Department has not advised on the other point, *viz.*, whether the English version could, as in India, be accepted in the settlement of doubts or disputes. Article XXII of the Treaty, however, provides for the English text being considered decisive. A similar article appears in the Zanzibar Treaty.

F. A. DEBRAUFORT—11th May 1891.

DEPUTY SECRETARY.

I do not think the Secretary intended to refer that point to the Legislative Department? We may send on now to the Resident, Persian Gulf, for alterations.

11th May 1891.

N. E.

Draft.

13th May 1891.

W. J. C.

Draft put up. The Persian Office may be asked to put up a draft memorandum of the alterations and additions to be made in the Treaty.

F. A. DEBRAUFORT—19th May 1891.

R. W. S.—19th May 1891.

Mr. Ney Elias.

Yes.

30th May 1891.

N. E.

DEPUTY SECRETARY.

The memorandum put up; a copy of the memorandum, also put up, may be kept on the file.

21st May 1891.

R. H.

Are we returning the declaration about not ceding or selling for signature to the English version?

22nd May 1891.

W. J. C.

DEPUTY SECRETARY.

No; it was sent to His Excellency yesterday for ratification.

R. W. S.—22nd May 1891.

Issue.

W. J. C.

[Pros.
Nos.
179-180.]

[Letter to the Political Resident in the Persian Gulf, No. 1088-E, dated the 25th May 1891.]

[Pros.
Nos.
181-182.]

FROM THE OFFICIATING POLITICAL RESIDENT IN THE PERSIAN GULF, NO. 123, DATED THE 20TH JULY 1891.

Returns, duly corrected, the copies of the new Commercial Treaty with the Sultan of Muscat.

MR. NEY ELIAS.

The Persian Office may be asked to see whether the Arabic portion is now correct.

F. A. DEBRAUFORT—1st August 1891.

3rd August 1891.

N. E.

Persian Office.

Yes, the necessary alterations have been made, and initialled by His Highness the Sultan of Muscat.

4th August 1891.

R. H.

Submitted with a draft despatch for approval.

F. A. DEBEAUFORT—5th August 1891.

R. W. S.—5th August 1891.

Mr. Ney Elias.

6th August 1891.

N. E.

Deputy Secretary.

Proof. It is no use asking the Secretary of State to send back both ratified copies. The Foreign Office will keep one. They have asked for the Sultan's original declaration about not ceding or selling.

8th August 1891.

W. J. C.

DEPUTY SECRETARY.

Submitted in proof.

R. W. S.—11th August 1891.

12th August 1891.

W. J. C.

Secretary.

14th August 1891.

H. M. D.

[Pros.
No. 183.]

[To Secretary of State, No. 143 (Secret—External), dated the 18th August 1891.]

Record Secret.

R. W. S.—19th August 1891.

Recorded and indexed by Abdus Samad—21st August 1891.

Recording and indexing examined by R. W. Sanderson, Supdt.—23rd August 1891.

Exd.—W. G. B.

AUGUST 1891.

New Commercial Treaty with the Sultan of Muscat.

S E 178-180

No. 178.

No. 60, dated Bushire, the 31st March 1891 (Confidential).

From—MAJOR A. C. TALBOT, C.I.E., Officiating Political Resident in the Persian Gulf and Her Britannic Majesty's Consul-General for Fars,

To—The Secretary to the Government of India, Foreign Department.

With reference to your confidential letter No. 293-E., dated the 11th February 1891, I have the honour to submit, for ratification, the new commercial treaty concluded with His Highness the Sultan of Muscat.

No. 179.

No. 1088-E., dated Simla, the 25th May 1891 (Confidential).

From—W. J. CUNNINGHAM, Esq., Deputy Secretary to the Government of India, Foreign Department,

To—The Political Resident in the Persian Gulf.

I am directed to acknowledge the receipt of your letter No. 60, dated the 31st March 1891, regarding the new Commercial Treaty with the Sultan of Muscat.

2. I am to observe that the vernacular version of the treaty has not been correctly transcribed. The errors and omissions noticed in the copy marked A, are indicated in the memorandum enclosed, and I am to request that the copies herewith returned may be corrected so far as it may be necessary, and that they may then be re-submitted for ratification.

3. I am to add that His Highness the Sultan should be requested to attest each alteration or addition. It would have been better if both the Arabic and the English version had been signed, but it is too late to make any alteration in that respect now.

No. 180.

Persian Office Memorandum.

The two copies of the Muscat Treaty have been compared, and the following errors and omissions are found in the copy marked A :—

(1) In the preamble the words ابن السيد تركي (Ibn-i-Sayyid Turki) are left out after السيد فيصل (Saiyid Feysal).

(2) ! (The sign of dual No.) is omitted in the last line from the word عقد which should be عقدا

(3) In the second line of the 1st Article , (conjunctive article) is omitted after بهذا

(4) The words ارضالب have been unnecessarily repeated, and require deletion, in the last but one line of Article II.

(5) The word ليدير requires insertion after رعاية in the 4th line of the 3rd Article.

(6) In the last line of the 9th Article لكن requires to be altered, making it = ليكن

(7) The word تعيد in the 2nd line of the 11th Article requires to be changed to تعود .

(8) In the 11th Article the last paragraph, representing the translation of "Likewise should a vessel of His Highness the Sultan, &c., &c.", to the end,

has been totally omitted. The paragraph begins with وكذلك اذا دخلت سفينة

S E—178-183—Aug.

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FOREIGN DEPARTMENT,

S E 181 New Commercial Treaty with the Sultan of Muscat.

No. 181.

No. 123, dated Bushire, the 20th July 1891.

From—MAJOR A. C. TALBOT, C.I.E., Officiating Political Resident in the Persian Gulf and Her Britannic Majesty's Consul-General for Fars, &c.,

To—The Secretary to the Government of India, Foreign Department.

With reference to Foreign Department letter No. 1088-E., dated the 25th May 1891, I have the honour to return herewith, duly corrected, the copies of the new Commercial Treaty with the Sultan of Muscat.

No 182.

(a)

TREATY OF FRIENDSHIP, COMMERCE AND NAVIGATION BETWEEN HER MAJESTY AND
HIS HIGHNESS THE SULTAN OF MUSKAT.

Her Majesty the Queen of the United Kingdom of Great Britain and Ireland, Empress of India, and His Highness the Seyyid Feysal bin Turki bin Saeed, Sultan of Muskat and Oman, being desirous to confirm and strengthen the friendly relations which now subsist between the two countries, and to promote and extend their commercial relations, have named as their Plenipotentiaries to conclude a Treaty for this purpose, that is to say:—

Her Majesty the Queen of the United Kingdom of Great Britain and Ireland, Empress of India, Colonel Edward Charles Ross, Companion of the Star of India, Her Britannic Majesty's Political Resident in the Persian Gulf;

And His Highness the Sultan of Muskat in person;

Who have agreed upon and concluded the following Articles:—

ARTICLE I.

The Treaty concluded between the British Government and Sultan Seyyid Saeed bin Sultan of Muskat and Oman on the ^{21st of May 1830} 17th Rabi'ul Ist 1255, is hereby cancelled and declared void, and the present Treaty when ratified shall be substituted for it.

ARTICLE II.

Subjects of Her Britannic Majesty shall, for the purposes of this Treaty, include subjects of Native States in India in alliance with Her Majesty. Such subjects shall enjoy, immediately and unconditionally, throughout the dominions of His Highness the Sultan of Muskat, with respect to commerce, shipping, and the exercise of trade, as in every other respect, all the rights, privileges, immunities, advantages and protection of whatsoever nature, which are, or hereafter may be, enjoyed by, or accorded to, the subjects or citizens of the most favoured nation.

They shall more specially not be liable to other or more onerous duties, imposts, restrictions, or obligations of whatever description, than those to which subjects or citizens of the most favoured nation now are, or hereafter may be, subjected.

ARTICLE III.

The two high contracting parties acknowledge reciprocally to each other the right of appointing Consuls to reside in each other's dominions wherever the interests of commerce may require the presence of such officers, and such Consuls shall at all times be placed in the country in which they reside on the footing of the Consuls of the most favoured nations. Each of the high contracting parties further agrees to permit his own subjects to be appointed to Consular Offices by the other contracting party, provided always that the persons so appointed shall not begin to act without the previous approbation of the sovereign whose subjects they may be. The public functionaries of either Government residing in the dominions of the other, shall enjoy the same privileges, immunities, and exemptions which are enjoyed within the same dominions by similar public functionaries of other countries.

ARTICLE IV.

There shall be perfect freedom of commerce and navigation between the high contracting parties; each shall allow the subjects of the other to enter all ports, creeks and rivers with their vessels and cargoes, also to travel, reside, pursue commerce and trade, whether wholesale or retail, in each other's dominions, and therein to hire, purchase, and possess houses, warehouses,

shops, stores and lands. British subjects shall everywhere be freely permitted, whether personally or by agent to bargain for, buy, barter, and sell all kinds of goods, articles of import or native production, whether intended for sale within the dominions of His Highness or for export, and to arrange with the owner or his agent, regarding the price of all such goods and produce without interference of any sort on the part of the authorities of His Highness.

His Highness the Sultan of Muskat binds himself not to allow or recognise the establishment of any kind of monopoly or exclusive privilege of trade within his dominions to any Government, association or individual.

ARTICLE V.

Subjects of Her Britannic Majesty shall be permitted throughout the dominions of His Highness the Sultan, to acquire by gift, purchase, intestate succession, or under will, or any other legal manner, land, houses, and property of every description whether moveable or immoveable, to possess the same; and freely to dispose thereof by sale, barter, donation or otherwise.

ARTICLE VI.

His Highness the Sultan shall be permitted to levy a duty of entry not exceeding 5 per cent on the value of all goods and merchandize of whatever description imported by sea from foreign countries into His Highness's dominions. This duty shall be paid at that port in His Highness's dominions where the goods are first landed, and on payment thereof such goods shall thereafter be exempt, within the Sultan's dominions, from all other customs duties or taxes levied by, or on behalf of, the Government of His Highness the Sultan, by whatever names these may be designated, and no higher import duty shall be claimed from British subjects than that which is paid by subjects or citizens of the most favoured nation.

This duty once paid shall cover, from all other charges on the part of His Highness the Sultan, goods of whatever description coming from foreign countries by sea, whether these are intended for local consumption or for transmission elsewhere in bulk or otherwise, and whether they remain in the state in which they are imported or have been manufactured.

There shall, however, be exempted from payment of all duty the following, namely:—

1. All goods and merchandize which, being destined for a foreign port, are transhipped from one vessel to another in any of the ports of His Highness the Sultan of Muskat, or which have been for this purpose provisionally landed and deposited in any of the Sultan's custom houses to await the arrival of a vessel in which to be re-shipped aboard. But goods and merchandize so landed shall be exempted only, provided that the consignee or his agent shall have, on the arrival of the ship, handed over the said goods to be kept under customs seal, and declared them as landed for transshipment, designating at the same time the foreign port of destination, and also provided that the said goods are actually shipped for the said foreign port as originally declared, within a period not exceeding six months after their first landing, and without having in the interval changed owners.

2. All goods and merchandize which, not being consigned to a port within the dominions of the Sultan, have been inadvertently landed, provided that such goods are re-shipped within a month of being so landed and transported abroad. Should, however, such goods or merchandize here spoken of be opened or removed from the custody of the customs authorities, the full duty shall then be payable on the same.

3. Coals, naval provisions, stores and fittings, the property of Her Majesty's Government, landed in the dominions of His Highness for the use of the ships of Her Majesty's Navy.

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shops, stores and lauds. British subjects shall everywhere be freely permitted, whether personally or by agent to bargain for, buy, barter, and sell all kinds of goods, articles of import or native production, whether intended for sale within the dominions of His Highness or for export, and to arrange with the owner or his agent, regarding the price of all such goods and produce without interference of any sort on the part of the authorities of His Highness.

His Highness the Sultan of Muskat binds himself not to allow or recognise the establishment of any kind of monopoly or exclusive privilege of trade within his dominions to any Government, association or individual.

ARTICLE V.

Subjects of Her Britannic Majesty shall be permitted throughout the dominions of His Highness the Sultan, to acquire by gift, purchase, intestate succession, or under will, or any other legal manner, land, houses, and property of every description whether moveable or immoveable, to possess the same; and freely to dispose thereof by sale, barter, donation or otherwise.

ARTICLE VI.

His Highness the Sultan shall be permitted to levy a duty of entry not exceeding 5 per cent on the value of all goods and merchandize of whatever description imported by sea from foreign countries into His Highness's dominions. This duty shall be paid at that port in His Highness's dominions where the goods are first landed, and on payment thereof such goods shall thereafter be exempt, within the Sultan's dominions, from all other customs duties or taxes levied by, or on behalf of, the Government of His Highness the Sultan, by whatever names these may be designated, and no higher import duty shall be claimed from British subjects than that which is paid by subjects or citizens of the most favoured nation.

This duty once paid shall cover, from all other charges on the part of His Highness the Sultan, goods of whatever description coming from foreign countries by sea, whether these are intended for local consumption or for transmission elsewhere in bulk or otherwise, and whether they remain in the state in which they are imported or have been manufactured.

There shall, however, be exempted from payment of all duty the following, namely:—

1. All goods and merchandize which, being destined for a foreign port, are transhipped from one vessel to another in any of the ports of His Highness the Sultan of Muskat, or which have been for this purpose provisionally landed and deposited in any of the Sultan's custom houses to await the arrival of a vessel in which to be re-shipped aboard. But goods and merchandize so landed shall be exempted only, provided that the consignee or his agent shall have, on the arrival of the ship, handed over the said goods to be kept under customs seal, and declared them as landed for transshipment, designating at the same time the foreign port of destination, and also provided that the said goods are actually shipped for the said foreign port as originally declared, within a period not exceeding six months after their first landing, and without having in the interval changed owners.

2. All goods and merchandize which, not being consigned to a port within the dominions of the Sultan, have been inadvertently landed, provided that such goods are re-shipped within a month of being so landed and transported abroad. Should, however, such goods or merchandize here spoken of be opened or removed from the custody of the customs authorities, the full duty shall then be payable on the same.

3. Coals, naval provisions, stores and fittings, the property of Her Majesty's Government, landed in the dominions of His Highness for the use of the ships of Her Majesty's Navy.

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4. All goods and merchandize transhipped or landed for the repair of damage caused by stress of weather or other disaster at sea, provided the cargo so discharged shall be re-shipped and taken away on board of the same vessel, or if the latter shall have been condemned, or her departure delayed, in any other manner.

ARTICLE VII.

No article whatever shall be prohibited from being imported into, or exported from, the territories of His Highness the Sultan of Muskat, and no export duties are to be levied on goods exported from those territories except with the consent of the Government of Her Britannic Majesty, such consent being subject to the conditions that may be laid down in the notifications intimating the same.

ARTICLE VIII.

It is agreed and understood by the high contracting parties that, in the event of an arrangement being entered into hereafter between His Highness and the powers having treaty relations with Muscat, and to which Great Britain shall be a consenting party, whereby vessels entering the port of Muskat shall be charged with shipping, tonnage or harbour dues, such dues to be administered under the control of a special Board for the improvement of the harbour and construction and maintenance of light-houses, &c., nothing in the aforementioned provisions shall be construed so as to exempt British vessels from payment of such shipping, harbour, or tonnage dues as may hereafter be agreed upon.

ARTICLE IX.

It shall be at the option of the British subject in each case to pay the percentage duties stipulated in Article VI either in cash or, if the nature of the goods allows of it in kind, by giving up an equivalent amount of the goods or produce.

In the event of payment being made in cash, the value of the merchandize, goods or produce on which duty is to be levied shall be fixed according to the ready-money market price ruling at the time when the duty is levied. In the case of foreign imports, the value shall be fixed according to the market price at Muskat, and in that of native goods and produce by the market price at the place where the merchant shall choose to pay the duty.

In the event of any dispute arising between a British subject and the custom house authorities regarding the value of such goods, this shall be determined by reference to two experts, each party nominating one, and the value so ascertained shall be decisive; should however these experts not be able to agree they shall choose an umpire whose decision is to be considered final.

ARTICLE X.

His Highness the Sultan of Muskat engages by the present treaty to provide, and give orders to his officials, that the movement of goods in transit shall not be obstructed or delayed in a vexatious manner by unnecessary customs formalities and regulations, and that every facility will be given for their transport.

ARTICLE XI.

British vessels entering a port in the dominions of His Highness the Sultan of Muskat in distress shall receive from the local authorities all necessary aid to enable them to re-victual and refit so as to proceed on their voyage.

Should a British vessel be wrecked off the coast of His Highness's dominions, the authorities of His Highness shall render all assistance in their power to the distressed vessel, in order to save the ship, her cargo, and those on board; they shall also give aid and protection to persons saved, and shall assist them

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in reaching the nearest British Consulate; they shall further take every possible care that the goods so recovered are safely stored, and kept for the purpose of being handed over to the owner, Captain, Agent of the ship, or British Consul, subject always to rights of salvage.

His Highness's authorities shall further see that the British Consulate is at once informed of such disaster having occurred.

Should a British vessel wrecked on the coast of His Highness's dominions be plundered, the authorities of His Highness shall, as soon as they come to know thereof, render prompt assistance and take measures to pursue and punish the robbers and recover the stolen property. Likewise should a vessel of His Highness the Sultan of Muskat or of one of his subjects enter a British port in distress, or be wrecked off the coast of Her Majesty's dominions, the like help and assistance shall be rendered by the British authorities.

ARTICLE XII.

Should sailors or others belonging to a British ship of war or merchant vessel, desert and take refuge on shore or on board of any of His Highness's ships, the authorities of His Highness the Sultan of Muskat shall upon request of a Consular official, or in his absence of the Captain of the ship, take the necessary steps in order to have them arrested and delivered over to the Consular Official or to the Captain.

In this however the Consular Officer and Captain shall render every assistance.

ARTICLE XIII.

Subjects of Her Britannic Majesty shall, as regards their person and property, enjoy within the dominions of His Highness the Sultan of Muskat the rights of ex-territoriality.

The authorities of His Highness the Sultan have no right to interfere in disputes with subjects of Her Britannic Majesty amongst themselves, or between them and members of other Christian nations; such questions whether of a civil or criminal nature, shall be decided by the competent Consular authorities.

The trial and also the punishment of all offences and crimes of which British subjects may be accused within the dominions of His Highness the Sultan, also the hearing and settlement of all civil questions, claims or disputes in which they are the defendants, is expressly reserved to the British Consular authorities and Courts, and removed from the jurisdiction of His Highness the Sultan.

Should disputes arise between subjects of His Highness the Sultan or other non-Christian power not represented by Consuls at Muskat, and a subject of Her Britannic Majesty in which the British subject is the plaintiff or complainant the matter shall be brought before and decided by the highest authority of the Sultan, or some person specially delegated by him for this purpose. The proceedings and final decision in such a case shall not, however, be considered legal unless notice has been given and an opportunity afforded for the British Consul or his substitute to attend at the hearing and final decision.

ARTICLE XIV.

Subjects of His Highness the Sultan or any non-Christian nation not represented by Consuls at Muskat, who are in the regular service of British subjects, within the dominions of His Highness the Sultan of Muscat, shall enjoy the same protection as British subjects themselves. Should they be charged with having committed a crime or serious offence punishable by law, they shall on sufficient evidence being shown to justify further proceedings, be handed over by British employers or by order of the British Consul to the authorities of His Highness the Sultan for trial and punishment.

ARTICLE XV.

Should a subject of Her Majesty residing in the dominions of His Highness the Sultan of Muskat be adjudicated bankrupt, the British Consul shall take possession of, recover, and realize all available property and assets of such bankrupt, to be dealt with and distributed according to the provisions of English Bankruptcy Law.

ARTICLE XVI.

Should a subject of His Highness the Sultan of Muskat resist or evade payment of the just and rightful claims of a British subject, the authorities of His Highness the Sultan shall afford to the British creditor every aid and facility in recovering the amount due to him. In like manner the British Consul shall afford every aid and facility to subjects of His Highness the Sultan of Muskat in recovering debts justly due to them from a British subject.

ARTICLE XVII.

Should a British subject die within the dominions of His Highness the Sultan of Muskat or dying elsewhere, leave property therein, moveable or immoveable, the British Consul shall be authorized to collect, realize, and take possession of the estate of the deceased, to be disposed of according to the provisions of English Law.

ARTICLE XVIII.

The houses, dwellings, warehouses and other premises of British subjects or of persons actually in their regular service within the dominions of His Highness the Sultan of Muskat shall not be entered, or searched, under any pretext by the officials of His Highness without the consent of the occupier, unless with the cognizance and assistance of the British Consul or his substitute.

ARTICLE XIX.

It is hereby agreed between the two high contracting parties that, in the event of an agreement being hereafter arrived at between His Highness the Sultan of Muskat and the various powers with which His Highness shall be in treaty relations, including Great Britain, which must be a consenting party, whereby the residents of a district or town shall, without distinction of nationality, be made subject to the payment of local taxes, for municipal and sanitary purposes, the same to be fixed and administered by or under the control of a special board, nothing contained in this treaty shall be understood so as to exempt British residents from the payment of such taxes.

ARTICLE XX.

Subjects of the two high contracting parties shall, within the dominions of each other, enjoy freedom of conscience and religious toleration, the free and public exercise of all forms of religion, and the right to build edifices for religious worship.

ARTICLE XXI.

The stipulations of the present treaty shall be applicable to all the colonies and foreign possessions of Her Britannic Majesty, so far as the laws permit, excepting to those hereinafter named, that is to say, except to—

The Dominion of Canada.	Victoria.
Newfoundland.	Queensland.
The Cape of Good Hope.	Tasmania.
Natal.	South Australia.
New South Wales.	Western Australia.
	New Zealand.

(14)

Provided always that the stipulations of the present Treaty shall be made applicable to any of the above-named colonies or foreign possessions on whose behalf notice to that effect shall have been given by Her Britannic Majesty's representative in Muskat to His Highness the Sultan within two years from the date of exchange of the ratifications of the present treaty.

ARTICLE XXII.

The present Treaty has been executed in quadruplicate, two copies being written in English, and two in Arabic. These are understood to be of similar import and signification; in the event, however, of doubt hereafter arising as to the proper interpretation of the English or Arabic text of one or other of the Treaty stipulations, the English text shall be considered decisive. The Treaty shall come into operation within one month after the date when the ratifications may take place.

ARTICLE XXIII.

After the lapse of twelve years from the date on which this Treaty shall come into force, and on twelve months' notice given by either party, this Treaty shall be subject to revision by Plenipotentiaries appointed on both sides for this purpose, who shall be empowered to decide on and adopt such amendments as experience shall prove to be desirable.

In witness whereof Colonel Edward Charles Ross, C.S.I., on behalf of Her Majesty the Queen of Great Britain and Ireland and Empress of India, and His Highness Seyyid Feysal bin Turki, Sultan of Muskat, on his own behalf have signed the same and affixed thereto their respective seals.

Done at Muskat this nineteenth day of March one thousand eight hundred and ninety-one, corresponding to the eighth Shaaban of the year thirteen hundred and eight Hijreea.

Signature of His Highness Seyyid
Feysal bin Turki bin Saeed, Sultan
of Muskat.

EDWARD CHARLES ROSS, Colonel,
Political Resident, Persian Gulf.

No. 143 of 1891.

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No 182.

GOVERNMENT OF INDIA.

FOREIGN DEPARTMENT.

SECRET.

External.

To

THE RIGHT HON'BLE VISCOUNT CROSS, G.C.B.,

Her Majesty's Secretary of State for India.

SIMLA, the 18th August 1891.

MY LORD,

With reference to Your Lordship's Secret Despatch No. 41, dated the 26th December 1890, we have the honour to forward, for the information of Her Majesty's Government, the text of a new Commercial Treaty concluded with the Sultan of Muscat.

In duplicate manuscript.

2. Your Lordship will observe that the treaty has been modified in accordance with the instructions contained in the Despatch above referred to, and that certain alterations which we had since found to be necessary in the Arabic version of the instrument have been initialled by His Highness the Sultan.

3. We trust that the treaty as now executed will meet with Your Lordship's approval, and that it will be ratified. We request that one copy may be returned in order that it may be handed over to the Sultan.

We have the honour to be,

MY LORD,

Your Lordship's most obedient, humble servants,

(Signed)	LANSDOWNE.
"	F. S. ROBERTS.
"	P. P. HUTCHINS.
"	D. BARBOUR.
"	A. E. MILLER.
"	H. BRACKENBURY.
"	R. C. B. PEMBERTON.

